TENTATIVE RULINGS

DEPT. CX103
(657-622-5303)

Judge David A. Hoffer
June 29, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at https://www.occourts.org/media-relations/aci.html. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2021-01185227 Diaz vs. UCA General Insurance Services, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court, but has not confirmed that the amount of the uncashed checks from the settlement has been transmitted to the cy pres recipient, Legal Aid at Work, despite the court's

		January 10, 2025 order stating that any uncashed check funds will be transferred to Legal Aid at Work. The court also notes that because a portion of the Judgment is being paid to a nonparty, Legal Aid at Work, plaintiffs must also submit an Amended Judgment that complies with CCP §§384(b) and 384.5, and Gov. Code §68520 within five (5) days of this ruling. Specifically, the Amended Judgment must state how much money is being paid to the nonparty, including any interest that accrued on the funds, and, if known, the purpose of the distribution to the nonparty and how it plans to expend the funds. The court's file will be closed ON THE CONDITION THAT, within five (5) days of this ruling, Plaintiffs must provide a declaration confirming that the uncashed check funds have been transferred to the cy pres recipient, Legal Aid at Work, and an amended judgment. Plaintiff is ordered to give notice of this ruling to Defendant.
2	30-2022-01261989 Guzman vs. Newport Heart Medical Group Inc.	**Off Calendar**
3	2022-01272018 Murillo vs. Doshi & Associates, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement will be transmitted to the State Controller's Office's Unclaimed Property Fund on or before June 19, 2026. The court's file shall be closed ON THE CONDITION THAT, within thirty (30) days of this ruling, Plaintiff must provide a declaration confirming that the remaining uncashed check funds have been transmitted to the State Controller's Office's Unclaimed Property Fund. Plaintiff is ordered to give notice of this ruling to Defendant.

4	30-2022-01284958 Rosas vs. Furniture Ave, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file is now closed. Plaintiff is ordered to give notice of this ruling to Defendant.
5	30-2023-01300740 Medina vs. Kindness General Contractors, LLC	The tentative ruling is to continue the Final Report Hearing to August 24, 2026 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. IT IS ORDERED THAT any uncashed check funds remaining shall be "deposited by the Settlement Administrator with the California Unclaimed Property Fund, in the name of the Participating Class Member whose check is not cashed," in accordance with the settlement agreement approved by the court. (Settlement at p. 6.) Plaintiff is ordered to give notice of this ruling to Defendant.
6	30-2023-01358173 Hernandez vs. Osen Irvine, Inc.	Plaintiff Leah Ruby Hernandez's ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement is **GRANTED IN PART**. The court disallows the attorney costs of $67.67 claimed for postage and copies because the court considers those cost items to be properly part of attorney overhead. The court concludes that the $400,000.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • $120,000.00 to plaintiff's counsel for plaintiff's attorneys' fees; • $24,897.61 to plaintiff's counsel for plaintiff's litigation costs, reduced from the $24,965.28 requested;

		$5,000.00 to Plaintiff Leah Ruby Hernandez as enhancement award, reduced from the $10,000.00 requested; $8,750.00 to Phoenix Class Action Administration Solutions, the settlement administrator, as requested; and $30,000.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is $211,352.39. Any uncashed check funds remaining after the check-cashing deadline must be transferred to cy pres recipient, Legal Aid at Work. The Final Accounting hearing is set for July 19, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendants.
7	30-2024-01434110 Truong vs. RRL Corporation	Plaintiff Dinh C. Truong's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") is **GRANTED**. **As the parties have decided to alter the PAGA Period to August 18, 2023 to November 30, 2025 (Supp. Seyedfarshi Dec. ¶ 8) instead of August 18, 2023 to December 1, 2025, the Notice of Settlement must be revised accordingly before being sent to the aggrieved employees.** The court concludes that the $199,000.00 PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: $59,700.00 to plaintiff's counsel [25% or $14,925.00 to Employment Rights Lawyers, APC and 75% or

		$44,775.00 to Law Offices of Farrah Mirabel] for plaintiff's attorneys' fees; • $12,699.40 to plaintiff's counsel for plaintiff's litigation costs, as requested; • $5,000.00 to Plaintiff Dinh C. Truong as enhancement award, as requested; • $5,350.00 to ILYM Group, Inc., the settlement administrator, as requested; • $87,187.95 to the LWDA for its share of PAGA penalties; and • $29,062.65 to the aggrieved employees for their share of PAGA penalties. The court sets a Final Report Hearing for July 19, 2027 at 1:30 p.m. to confirm that distribution efforts are fully completed, including the distribution of uncashed aggrieved employee checks after 180 days, that the Administrator's work is complete, and that the court's file thus may be closed. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
8	30-2023-01354699 Moayeri vs. Financial Insight Technology, Inc.	The tentative ruling is to continue Plaintiff Amir Moayeri's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 2, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Plaintiff failed to provide the court with a text-searchable declaration from counsel, Megan Lazar, in compliance with CRC 2.256(b)(3).

		Plaintiff does not provide an estimate of the number of class members and aggrieved employees included in this settlement. The motion fails to provide the class members' and aggrieved employees' estimated individual recovery under the proposed settlement, including the estimated high, low and average payments to be paid to class members and aggrieved employees. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 20% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. The settlement agreement and class notice are inconsistent as to who will resolve workweek disputes. Paragraph 59 of the settlement agreement and page 6 of the class notice state that the Administrator will resolve any workweek disputes, but page 2 of the class notice states that the decision is reviewable by the court. The documents should reflect instead that while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. The Class and PAGA Periods are defined as ending on June 4, 2025. However, the escalator clause in Paragraph 54 of the settlement agreement provides for the option to either increase the settlement amount or change the Class and PAGA Periods such that some of the class members and aggrieved employees might no longer be included in the settlement. This court, however, will not approve a settlement that results in class members and aggrieved employees being told they are in the settlement but later being told they are not included in the settlement. Thus, defendant will have to either rely on or take another look at its estimated number of class members and aggrieved employees, or select the increased payment option. If the parties want to preserve the option calling for a reduction of the Class and PAGA Periods, rather than just an increase in the settlement amount, they must determine if the escalator clause applies before sending out the class notice, and have the class notice include the adjusted end date so that it is not sent to non-participants.

		The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiff shall provide documentation and support for any request higher than this percentage at the final approval stage. The settlement agreement does not state whether it is reversionary or non-reversionary. The court will not issue an injunction against the aggrieved employees or the State of California. Res judicata and collateral estoppel arguments should provide defendants with sufficient protection against facing these same claims again. Thus the phrase "The Aggrieved Employees and the State of California will be deemed by operation of the Final Order and Judgment to have agreed not to sue or otherwise make a claim against Defendants and/or any of the Released Parties for the PAGA Claims that arose during the PAGA Period, to the extent permissible by law." must be removed from Paragraph 49 of the settlement agreement and Page 5 of the class notice. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff's declaration to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff shall provide notice of this ruling to the LWDA, and to Defendants.
9	30-2023-01360696 Cuevas vs. Brothers International Desserts, Inc.	The tentative ruling is to continue Plaintiffs Mario De Jesus Cuevas and Grecia Veliz Castillo's (collectively, "Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 2, 2026 at 1:30 p.m.

		Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount, which the court finds fair, adequate and reasonable for the settlement of this size. The parties may either reduce the attorneys' fees request by amendment to the settlement agreement and the class notice, or Plaintiffs shall provide documentation and support for any request higher than this percentage at the final approval stage. The motion fails to provide the class members' and aggrieved employees' estimated individual recovery under the proposed settlement, including the estimated high, low and average payments to be paid to class members and aggrieved employees. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The allocation of only 10% of the settlement payments for wages appears to be low. Either an increase to 33 1/3% or an explanation of why the figure is not at least 33 1/3% is required. Paragraphs 8.6 and 8.8.4 of the settlement agreement and Section 4(3) of the class notice state that the Administrator will resolve any workweek disputes. The documents should reflect instead that, while the Administrator and the parties will attempt to resolve any such dispute, the court will ultimately decide any unresolved dispute. Paragraph 8.5.2 of the settlement agreement states that the administrator shall make the final determination as to the authenticity of an opt-out request. The documents should reflect instead that the court will ultimately decide any

		unresolved dispute regarding the authenticity of an opt-out request. The scope of the releases in Paragraphs 6.2 and 6.3 of the settlement agreement are overbroad. The phrase "and ascertained in the course of the Action" must be removed from both releases. Rather than having class members prepare their own opt-out requests, the class notice must include an exclusion form that class members can complete and submit. The form should be referenced in the class notice. The class notice pages must be numbered. In Section 3 of the class notice, the phrase "Court Approved Deductions from Gross Settlement." should be amended to state "Deductions from Gross Settlement Subject to Court Approval." Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiffs' attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiffs' declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date, to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant.
10	30-2025-01497724 Yorba Canyon, LLC vs. City of Yorba Linda	Petitioner and Plaintiff Yorba Canyon, LLC's ("Petitioner") Motion for Leave to File First Amended Verified Petition to Writ of Mandate, Prohibition, or Other Extraordinary Relief; Complaint for Declaratory Relief ("1AP") is **GRANTED**. The proposed 1AP is not deemed filed. IT IS ORDERED THAT Petitioner shall file and serve the proposed 1AP within five (5) days of this ruling. The court **GRANTS** Petitioner's request for judicial notice of the original petition in this action. (Cal. Evid. Code § 542(d).)

		The court **GRANTS** Respondents City of Yorba Linda, City of Yorba Linda Community Development Department, Nate Farnsworth and City of Yorba Linda's Planning Division's (collectively, "Respondents") requests for judicial notice of the following: (1) City of Yorba Linda City Council Resolution No. 2024-5898. (2) California Department of Housing and Community Development correspondence dated July 24, 2024. (3) Correspondence from City of Yorba Linda Community Development Director Nate Farnsworth dated April 28, 2025. (4) Yorba Linda Municipal Code, Sections 18.36.100 *et seq*. - Design Review. (5) Yorba Linda Municipal Code, Sections 18.36.*200 et seq*. - Conditional Use Permit. (6) Yorba Linda Municipal Code, Sections 18.36.800 – Final Decisions and Appeals. (7) Uniform Application for Conditional Use Permit and Design Review with Attachment 1 – Project Description. (8) City of Yorba Linda City Council Resolution 2024-5924. (9) Formal Application Resubmittal dated January 30, 2025. The court may take judicial notice of "resolutions, reports and other official acts of County and City[.]" (*Long Beach Equities, Inc. v. Cnty. of Ventura* (1991) 231 Cal. App. 3d 1016, 1024.) The court may also take judicial notice of municipal codes and licensing applications. (*City of Corona v. Naulls* (2008) 166 Cal. App. 4th 418, 420 n.1.) The court may take judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." (Cal. Evid. Code § 452(c).) **<u>Motion for Leave to File Amended Petition</u>** Petitioner seeks to amend its petition to include new allegations based on Respondent City of Yorba Linda's (the "City") decision under Assembly Bill 1633 determining that there was not substantial evidence to support a CEQA exemption under CEQA Guidelines Section 15183 for Petitioner's project, which Petitioner contends is entitled to the Builder's Remedy protections under the Housing Accountability Act ("HAA").

		The 1AP seeks to add a third cause of action for “Writ of Mandate — CCP § 1094.5 and/or § 1085; Violation of Housing Accountability Act (HAA)” and a fourth cause of action for “Writ of Mandate — CCP § 1094.5 and/or § 1085; Violation of Housing Accountability Act (HAA).” The third cause of action asserts that the City’s decision was an unlawful disapproval of Petitioner’s project under the HAA. The fourth cause of action claims that due to new case law—*New Commune DTLA LLC v. City of Redondo Beach* (2025) 115 Cal.App.5th 111 ("*New Commune*") which was decided in October 2025—the overlay in the City’s 2024 Housing Element (“Housing Element”) is no longer substantially compliant with the HAA. Thus, Petitioner alleges that its project qualifies as a builder’s remedy project entitled to special protections under the HAA. The fourth cause of action alleges that the City acted in bad faith by improperly requiring a level of environmental analysis wholly out of proportion to the environmental analysis it has required for other, non-Builder's Remedy projects. The 1AP also adds to the prayer for relief: (1) “writ of mandate or other appropriate relief, including an injunction, declaration, and/or order, commanding Respondents to comply with the Housing Accountability Act with respect to the proposed Project, including, but not limited to, an order that the Project is eligible for the Builder's Remedy, and directing Respondents to conduct the Project's CEQA review in a manner substantially similar to other projects that were analyzed in the 2022 EIR and 2024 Addendum;” and (2) “writ of mandate or other appropriate relief, including an injunction, declaration, and/or order under Code of Civil Procedure sections 1094.5 and/or 1085 commanding that Respondents analyze the Project under the 2022 EIR and for the Court to retain continuing jurisdiction over this matter to ensure compliance with this Court's decision and applicable law.” Respondents oppose this Motion only as to Paragraphs 34, 35, 36, 57, 103, 104, 105, 106, 107, 108, 109, 110, 111, 112, 113, and Paragraph 6 of the Prayer. These paragraphs include the entire new Fourth Cause of Action in the 1AP, and supporting allegations concerning the *New Commune* case. Respondents argue that the Fourth Cause of Action is barred by an applicable statute of limitations and that the claim is not ripe for adjudication.

		"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading[.]" (CCP § 473(a)(1).) "[T]rial courts are to liberally permit such amendments, at any stage of the proceeding[.]" (*Hirsa v. Superior Court* (1981) 118 Cal. App. 3d 486, 488-89.) A court's discretion is usually exercised liberally to permit amendment of the pleadings, and it is a rare case in which denial of leave to amend can be justified. (*See, e.g.*, *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) "[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Atkinson v. Elk Corp.* (2003) 109 Cal. App. 4th 739, 761.) "[I]t is irrelevant that new legal theories are introduced as long as the proposed amendments 'relate to the same general set of facts.'" (*Id.*) "[T]he test is whether the two pleadings relate to the same general set of facts." (*Hirsa*, 118 Cal. App. 3d at 489.) "[A] proposed amendment, by seeking recovery for the same accident and injuries as the original complaint, complies with that test." (*Id.*) Leave to amend may be denied "[w]hen amendment would be futile because the amended petition would be barred by the statute of limitations[.]" (*Royalty Carpet Mills, Inc. v. City of Irvine* (2005) 125 Cal. App. 4th 1110, 1124.) Leave to amend may also be denied when claims are not ripe. (*See, e.g. York v. City of Los Angeles* (2019) 33 Cal. App. 5th 1178, 1197.) **<u>Statute of Limitations</u>** Respondents argue that Petitioner's Fourth Cause of Action concerning the builder's remedy under the HAA is barred by the statute of limitations under Cal. Gov't Code § 65009. However, Respondents fail to articulate which statute of limitations period they contend is applicable to the Fourth Cause of Action as there are several within cited in the opposition: • "Except as provided in subdivision (d), no action or proceeding shall be maintained in any of the following cases by any person unless the action or proceeding is commenced and service is made on the legislative body **within 90 days after the legislative body's decision**: (A) To attack, review, set aside, void, or annul the decision of a legislative body to adopt or amend a general or specific plan." (Cal. Gov't Code § 65009(c)(1)(A) [emphasis added].) This applies "to an

		action attacking a general plan or mandatory element thereof on the basis that it is inadequate." (*Id.*) • "In the case of an action or proceeding challenging the adoption or revision of a housing element pursuant to this subdivision, the action or proceeding may, in addition, be maintained if it is commenced and service is made on the legislative body **within 60 days following the date that the Department of Housing and Community Development ["HCD"] reports its findings pursuant to subdivision (h) of Section 65585**." (Cal. Gov't Code § 65009(c)(2) [emphasis added].) • "An action or proceeding challenging the adoption or revision of a housing element that the Department of Housing and Community Development has found to substantially comply with the requirements of Article 10.6 (commencing with Section 65580) of Chapter 3 shall be commenced, and the legislative body shall be served, **within six months after the accrual of the cause of action as provided in this subdivision**." (Cal. Gov't Code § 65009(d)(2)(A).) • "A cause of action brought pursuant to this subdivision shall not be maintained **until 60 days have expired following notice to the city** or clerk of the board of supervisors by the party bringing the cause of action, or the party's representative, specifying the deficiencies of the general plan, specific plan, zoning ordinance, or other action described in subparagraph (B) of paragraph (1)." (Cal. Gov't Code § 65009(d)(3)(A) [emphasis added].) "A cause of action brought pursuant to this subdivision shall accrue **60 days after notice is filed or the legislative body takes a final action in response to the notice, whichever occurs first**." (*Id.* [emphasis added].) The City adopted its Housing Element on June 18, 2024. (Respondents' RJN, Ex. 1.) The HCD determined that the City's Housing Element was substantially compliant with the law on July 24, 2024. (Respondents' RJN, Ex. 2.) This action was filed July 17, 2025. To the extent a cause of action challenges the adoption of the Housing Element, the relevant statute of limitations is six months after the accrual of the cause of action (Cal. Gov't Code § 65009(d)(2)(A)) since the HCD determined that the Housing Element was substantially compliant. The statute of

		limitations for a claim challenging the adoption of the Housing Element therefore ran six months after the housing element was adopted, i.e. December 18, 2024 (subject to any tolling). However, Petitioner demonstrates in its reply that this statute of limitations does not apply to its fourth cause of action, since Petitioner is not making a facial attack on the Housing Element, is not challenging its adoption, and is not asking that it be set aside or invalidated. Rather, Petitioner is only arguing that the Housing Element is no longer substantially compliant with the HAA as a prerequisite for a Builder's Remedy claim under the HAA. One of the criteria for a project to be defined as a "builder's remedy project" is that "[o]n or after the date an application for the housing development project or emergency shelter was deemed complete, the jurisdiction did not have a housing element that was in substantial compliance with this article." (Cal. Gov't Code § 65589.5(h)(11)(B).) Petitioner argues that this language shows that it need not allege or prove that a housing element was invalid at the time of adoption, but simply that the housing element is out of compliance "on or after the date an application for the housing development project . . . was deemed complete." The court agrees with Petitioner that the allegations in the 1AP do not challenge the City's adoption of the Housing Element, but rather focuses on the requirements for the Builder's Remedy protections under the HAA. Petitioner does not seek to "attack, review, set aside, void, or annul the decision of a legislative body to adopt or amend a general or specific plan." (Cal. Gov't Code § 65009(a)(2).) Thus, the policy reasoning for the short statutes of limitations to avoid barriers to "the completion of needed developments even though the projects have received required governmental approvals" does not apply here. (*Id.*) Accordingly, the statute of limitations under Section 65009 does not apply to the fourth cause of action. In addition, as Petitioner points out, Petitioner could not have brought this claim at the time the Housing Element was adopted. It was not until the *New Commune* decision in October 2025 that Petitioner had grounds for the fourth cause of action. The *New Commune* case concerned the minimum density requirements under Government Code § 65583.2(h), clarifying that without exception, "overlays are unlawful when they allow development below the statutory minimum density."

		(*New Commune DTLA LLC v. City of Redondo Beach* (2025) 115 Cal. App. 5th 111, 135.) The court found that the relevant laws evidenced "the Legislature's intent to prevent local jurisdictions from including in their housing element sites that have little to no probability of being used to meet identified housing needs." (*Id*. at 134.) The court found that the City of Redondo Beach's overlay did not comply with the mandatory minimum density requirements. (*Id*.) The overlay at issue was as follows: "The housing element at issue accommodates 1,223 lower-income residential units through a residential overlay applied to sites zoned for commercial and industrial use. The overlay allows for a density of 55 dwelling units per acre. The overlay does not eliminate the commercial and industrial base zoning on the identified sites." (*Id*. at 134-135.) The plaintiff argued that the City violated the HAA by "allowing the housing element to identify sites that accommodate [the Department of Housing and Community Development's regional housing needs allocation for the City] but that, in actuality, may be developed without any residential component." (*Id*. at 135.) The court agreed, finding that the overlay "allows development on identified sites without requiring any residential construction, i.e., it allows for construction with zero residential units." (*Id*.) The overlay was also improper because "the City's overlay maintains commercial and industrial zoning rights that section 65583.2(h)(2) requires be eliminated[,]" (*Id*. at 136.) In its fourth cause of action, Petitioner alleges that Respondents adopted a housing element that is similarly non-compliant because it relies on an overlay on parcels zoned for commercial or industrial use, which therefore may be developed "by right" without housing, and thus cannot meet the minimum density requirements under the HAA. An "action to enforce a statutory obligation" is subject to a three-year statute of limitations under CCP § 338. (*Travis v. Cnty. of Santa Cruz* (2004) 33 Cal. 4th 757, 773.) For **"a facial challenge** to a zoning ordinance based on preexisting statutes or the Constitution, plaintiffs are limited, under section 65009, subdivision (c)(1)(B), to 90 days *from the ordinance's adoption*[.]" (*Id*. at 774 [emphasis added].) On the other hand, when a challenge to a zoning ordinance is "based on a later enacted state statute [that preempts the zoning ordinance], the limitations period (under Code Civ. Proc., § 338, subd. (a)) also runs . . . from the first time the challenge could be brought, i.e., the initial accrual of the cause of action," or "the

		[preempting] state statute's effective date." (*Id*. at 774.) The certainty "to local governments (§ 65009, subd. (a)(3))," should not be "at the expense of a fair and reasonable opportunity to challenge an invalid ordinance when it is enforced against one's property." (*Id*. at 770-771.) Thus, when there is a change in the law such as the holding in *New Commune*, a party should be able to challenge a Housing Element, notwithstanding the short statute of limitations periods under section 65009. For this additional reason, the statute of limitations under Section 65009 does not apply to the fourth cause of action. **<u>Ripeness</u>** Respondents argue that the fourth cause of action is not ripe because Respondents have not taken any final actions as to Petitioner's project. Respondents state that although the City determined that the proposal was not entitled to a CEQA exemption, the City specifically informed the Petitioner that, "The City will continue to process your application in accordance with State and local requirements." (Respondents' RJN, Ex. 3, p. 0118.) Respondents note that any decision of the Planning Commission can be appealed to the City Council. (Respondents' RJN, Ex. 6, YLMC section 18.36.820.) Respondents cite to a case that required administrative exhaustion for the subject claim, but that claim was not one under the HAA. "Ripeness looks at whether a controversy is 'definite and concrete.'" (*Casa Blanca Beach Ests. Owners' Assn. v. Cnty. of Santa Barbara* (2024) 102 Cal. App. 5th 1303, 1309.) That court noted that "[a]n administrative decision is final, i.e., ripe, 'when the agency has exhausted its jurisdiction and possesses 'no further power to reconsider or rehear the claim.'" (*Id*.) "Until a public agency makes a final decision, the matter is not ripe for judicial review." (*Id*.) "In the context of administrative proceedings, a controversy is not ripe for adjudication until the administrative process is completed and the agency makes a final decision that results in a direct and immediate impact on the parties." (*Id*.) A claim under the HAA may be based on a disapproval decision, not just a final action. "A petition to enforce the provisions of [the HAA] shall be filed and served no later than 90 days from the later of (1) the effective date of a decision of the local agency imposing conditions on, **disapproving**, or any

		other final action on a housing development project . . .” (Cal. Gov't Code § 65589.5(m)(1) [emphasis added].)
		
		Petitioner points out that the HAA sets forth grounds to bring suit before final decisions are made on a proposed project by requiring the following:
		• A local agency shall not adopt or impose any requirement, process, practice, or procedure or undertake any course of conduct, including, but not limited to, increased fees or inclusionary housing requirements, that applies to a project solely or partially on the basis that the project is a builder's remedy project. (Cal. Gov't Code § 65589.5(f)(6)(E).)
		• “Disapprove the housing development project” includes any instance in which a local agency does any of the following:
		  o Makes a written determination that a preliminary application described in subdivision (a) of Section 65941.1 has expired or that the applicant has otherwise lost its vested rights under the preliminary application for any reason other than those described in subdivisions(d)1 and (e) of Section 65941.1. (Cal. Gov't Code § 65589.5(h)(6)(I).)
		  o Fails to make a determination of whether the project is exempt from the California Environmental Quality Act (Division 13 (commencing with Section 21000) of the Public Resources Code), or commits an abuse of discretion, as defined in subdivision (b) of Section 65589.5.1 if all of the conditions in Section 65589.5.1 are satisfied. (Cal. Gov't Code § 65589.5(h)(6)(J).)
		
		Petitioner points out that the other claims and allegations not challenged by Respondents also concern pre-final decision actions by Respondents, and yet Respondents do not argue that those claims are not ripe. Petitioner also points out that Respondents refused Petitioner’s request for an appeal, so the City’s decision is, in essence, final.
		
		The court finds that the facts alleged in the 1AP sufficiently state that the City made a disapproval decision which renders Petitioner’s claim ripe under the HAA.
		
		<u>Prejudice</u>

		Respondents argue that any challenge to the legal framework that provides for affordable housing in the City of Yorba Linda may sow confusion and uncertainty. However, similar prejudicial arguments were made and rejected by the *New Commune* court: "We recognize the City expended significant time and energy preparing the housing element and responding to HCD findings. We also recognize the potential practical problems inherent in rezoning. But the Legislature has established minimum density requirements and cabined the discretion of local jurisdictions to prevent them from overriding those requirements. We decline the invitation to reconsider the wisdom or practicality of this approach." (*New Commune*, 115 Cal. App. 5th at 137.) The court finds that Respondents' claims of prejudice are speculative and not based on permitting Petitioner leave to amend, but rather a result of the change in the law that may affect the legality of the City's Housing Element. Based on the foregoing, the court grants Petitioner's Motion in light of the liberal policy for allowing amendments, because there is no prejudice to Respondents, and because the claims are not barred by either an applicable statute of limitations or the ripeness doctrine. Importantly, the court recognizes that its findings and determinations in this ruling are at an early stage of the proceedings and are made on compressed briefing. <u>These findings and determinations are made without prejudice to these issues being raised again at any later stage of the proceedings.</u> Petitioner is ordered to give notice of this ruling to Respondents.
11	30-2025-01499610 Sofferman vs. Orange County Global Medical Center, Inc., a California corporation	<u>**I. Motion to Compel Arbitration**</u> Defendant Orange County Global Medical Center, Inc.'s motion to compel arbitration is **GRANTED**. Plaintiff Trevin Sofferman is ordered to arbitrate his individual claims. The case is otherwise **STAYED** pending completion of the arbitration. An ADR Review Hearing is scheduled for March 17, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete.

		Formation of Agreement The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. *Little v. Pullman* (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Id.*; *Perry v. Thomas* (1987) 482 U.S. 483, 492 n.9 (State law applicable to contracts generally governs whether a valid arbitration agreement exists.) Here, the Dispute Resolution Agreement (the "Agreement") is attached to the declaration of Candace Burchell, Human Resources Manager of two of the four subsidiary hospitals under parent entity and defendant KPC Healthcare, Inc. ROA 93. Burchell is the HR Manager for defendant Orange County Global Medical Center, Inc. ("OCGMC") and a subsidiary hospital Anaheim Global Medical Center. *Id.* She retrieved plaintiff's hand-signed 2019 arbitration agreement from his personnel file. *Id.* Ex. 1. This is sufficient to meet defendant's initial burden that an agreement to arbitrate exists. Plaintiff states he initially acknowledged the binding arbitration policy as part of an employee handbook in 2015. ROA 112. In 2019, plaintiff was provided a new employee handbook and told to sign the back page. *Id.* He understood the back page was a "legal agreement" and, as he was concerned, he did not sign it. *Id.* After his supervisor told him he was required to sign it, he did so. *Id.* Plaintiff thus argues in opposition that no agreement formed because Ms. Burchnell lacks foundation to testify as to the circumstances of plaintiff's execution of the Agreement. However, Ms. Burchell does not purport to do so. ROA 93. She retrieved the document from plaintiff's personnel file and has familiarity and access because of her role as HR Manager. *Id.* Even if the Agreement was thus not authenticated as business record, which it was, plaintiff authenticated it, so any opposition on that basis lacks merit. ROA 112 ¶ 16 ("I have reviewed the document attached as Exhibit 1 to the Declaration of Candace Burchell in support of Defendant OCGMC's Motion to Compel Arbitration and Stay Claims. I

		see the document is titled 'Dispute Resolution Agreement.' This is the same document that was on the back page of the New Employee Handbook that I reviewed and eventually signed in 2019."). Plaintiff also argues the agreement is void for lack of mutual assent and/or fraud in the execution. Opp. at 7-8. However, plaintiff admits he looked at the Agreement and chose not to sign it initially because it was a "legal agreement." ROA 112. He provides no evidence he was deceived about its contents or that he was prevented from reviewing it before signing it. In other words, plaintiff has provided no evidence supporting a lack of mutual assent or fraud. *See Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 423 ("If a party, with such reasonable opportunity, fails to learn the nature of the document he or she signs, such negligence precludes a finding the contract is void for fraud in the execution."); *Randas v. YMCA of Metro. Los Angeles* (1993) 17 Cal.App.4th 158, 163 ("one who accepts or signs an instrument, which on its face is a contract, is deemed to assent to all its terms, and cannot escape liability on the ground that he has not read it."). While defendant need not have done so as plaintiff's authenticity challenge lacks merit, it has provided a declaration from OCGMC's HR Manager from 2022-2023 and 2026-present to address plaintiff's declaration. ROA 130. Arlene Nielsen states unequivocally that the Agreement was a standalone document and not part of the Employee Handbook in effect when plaintiff was hired. *Id.* The 2018 OCGMC handbook is attached to her declaration, and the last page is simply an acknowledgement without any mention of arbitration. *Id.* Ex. 2. Based on the evidence, the court finds an agreement to arbitrate was made. **Applicability of the Federal Arbitration Act** The Agreement states it is governed by the FAA. ROA 93 Ex. 1 ¶ 7. Defendant also provides evidence that its business involves interstate commerce and that it receives Medicaid payments. ROA 93 ¶ 7. Accordingly, the FAA applies, and plaintiff does not argue otherwise. *See Willis v. Prime Healthcare Services, Inc.* (2014) 231 Cal.App.4th 615, 626 ("Payments of Medicare or Medicaid funds are transactions involving commerce.").

Relevant Terms and Whether the Agreement Covers the Dispute

The Agreement applies to "all disputes that might arise out of or be related in any way to [ ] employment by the Company." ROA 93 Ex. 1 ¶ 1. The Company is defined as "Orange County Global Medical Center, Inc." *Id.* The claims covered by the Agreement include those against the Company's "parent, subsidiary, affiliated or client entities as well as against owners, directors, officers, managers, employees, agents, contractors, attorneys, benefit plan administrators, and insurers of the Company or of its parent, subsidiary, affiliated or client entities…[and] any person or entity I allege to be a joint employer with the Company." *Id.* ¶ 3.

The Agreement further provides for a class and PAGA waiver. Employees "waive any substantive or procedural rights that [they] may have to bring or participate in an action brought on a class or collective basis. If under applicable law a representative claim under the California Private Attorneys General Act ('PAGA') is found to be unwaivable and such an action is pursued in court, I and the Company agree that any such PAGA claim will be severed and stayed pending resolution of claims that are arbitrable." *Id.* ¶ 4.

Unconscionability

In *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, "'generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening" the FAA' or California law." *Id.* at 125; *accord AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.

To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; *see also OTO, L.L.C., supra*, 8 Cal.5th at 129-30. "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." *Armendariz, supra*, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 402.

Procedural Unconscionability

Defendant concedes the Agreement, as a condition of employment, is a contract of adhesion. Moreover, plaintiff contends that his supervisor told him he was required to sign the Agreement. However, while it is true virtually all "take it or leave it" contracts carry some degree of procedural unconscionability, that degree is not high absent evidence the defendant actively interfered with plaintiff's ability to review and understand the arbitration clause. *See Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1145 (procedural unconscionability presumptively low absent evidence the defendant actively interfered with plaintiff's ability to review and understand the arbitration clause).

Not only does plaintiff fail to provide evidence defendant prevented him from understanding the Agreement, plaintiff has testified he initially refused to sign the Agreement because it was a "legal agreement," which demonstrates some level of comprehension. ROA 112. Furthermore, the Agreement is a standalone document and not overly long, technical, or complex. At any rate, it is immaterial whether the Agreement was explained, read, or understood. *Randas v. YMCA of Metro. Los Angeles* (1993) 17 Cal.App.4th 158, 163 ("one who accepts or signs an instrument, which on its face is a contract, is deemed to assent to all its terms, and cannot escape liability on the ground that he has not read it.").

Accordingly, the evidence demonstrates a low to moderate amount of procedural unconscionability based on the adhesive nature of the Agreement.

Substantive Unconscionability

Substantive unconscionability examines the fairness of a contract's terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 129-30. The court focuses on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to

		impermissibly alter fundamental legal duties. This includes unreasonable or harsh terms or ones that undermine the non-drafting party's reasonable expectations. *Id.* at 130. Plaintiff argues the agreement is substantively unconscionable based on its (1) overbroad scope, (2) lack of mutuality, and (3) indefinite duration. First, plaintiff cites language in *Cook v. Univ. of S. Cal*. (2024) 102 Cal.App.5th 312 regarding overbroad scope due to an express term that the claims subject to arbitration were unlimited. Opp. at 9 ("whether or not arising out of employment"). Plaintiff then concedes the Agreement does no such thing, but contends its application to third parties expands the scope to "virtually any claim." Opp. at 10. This argument is unavailing. The Agreement covers "all disputes that might arise out of or be related in any way to my employment by the Company." ROA 93 Ex. 1 ¶ 1. Additionally, above the signature line, in bold capitalized font, the Agreement reiterates its limited application, stating it applies to "**ANY AND ALL DISPUTES THAT ARISE OUT OF MY EMPLOYMENT[.]"** *Id.* at 3. The scope issue in *Cook* is thus not present here. Second, plaintiff argues lack of mutuality because, while he is required to arbitrate claims he may have against defendant and related third parties, related third parties are not required to arbitrate claims against plaintiff. Plaintiff again relies on *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312. However, in *Cook*, the court found a lack of mutuality because the agreement at issue required plaintiff to give up the ability to ever bring claims in court against one of defendant's employees even if they "are unrelated to USC or her employment there." *Cook*, 102 Cal.App.5th at 327. Here, the Agreement contains no such language and, as explained above, it is expressly limited to the employment context. In a case involving a provision similar to the one at issue here, *Cook* was distinguished on the basis that such provisions providing for arbitration against third parties are not substantively unconscionable because if employer and employee are required to arbitrate all employment-related disputes between them, arbitration "applies equally to employee and employer initiated claims, carrying the modicum of bilaterality required by law." *Ayala-Ventura v. Superior Ct.* (2026) 119 Cal. App. 5th 241, 259 (*review denied* June 17, 2026). For the same reason, the court finds *Cook* inapplicable here.

Third, plaintiff argues the arbitration agreement is substantively unconscionable because it is of indefinite duration. Plaintiff relies on a non-binding federal case, which relied on *Cook*. Opp. at 11. Again, reliance on *Cook* is misplaced because, unlike here, that agreement contained an express term providing for infinite duration. Specifically, in *Cook*, "[t]he arbitration agreement specifically provide[d] that it will survive unless and until Cook and USC's president specifically terminate the agreement in a writing, signed by both parties, which expressly mentions the arbitration agreement." *Cook*, 102 Cal.App.5th at 326. Here, plaintiff identifies no provision of the Agreement, let alone one that is reasonably interpreted to provide for indefinite duration. To the contrary, the Agreement provides the parties "must present any claim in arbitration before the statute of limitations expires for that type of claim." ROA 93 Ex. 1 ¶ 5. Plaintiff provides no authority such a provision is substantively unconscionable in any respect. Moreover, even if this provision was not interpreted to effect finite duration, the default rule would apply, i.e., "arbitration agreements that do not specify a term of duration are terminable at will after a reasonable time has elapsed." *Reigelsperger v. Siller* (2007) 40 Cal. 4th 574, 580.

Accordingly, because the court finds the Agreement is not substantively unconscionable, the agreement is enforceable without regard to the low to moderate amount of procedural unconscionability.

<u>Stay</u>

Per Viking River, the FAA allows a PAGA claim to be split into individual and representative portions, which the Agreement expressly provides. ROA 93 Ex. 1 ¶ 4 ("If under applicable law a representative claim under the California Private Attorneys General Act ('PAGA') is found to be unwaivable and such an action is pursued in court, I and the Company agree that any such PAGA claim will be severed and stayed pending resolution of claims that are arbitrable."); *Viking River Cruises, Inc. v. Moriana* (2022) 142 S. Ct. 1906, 1919. Following *Viking River*, the California Supreme Court held "a plaintiff who files a PAGA action with individual and non-individual claims does not lose standing to litigate the non-individual claims in court simply because the individual claims have been ordered to arbitration." *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal. 5th 1104, 1125. In such cases, the representative PAGA claim should be stayed and the individual PAGA claim should be ordered to arbitration. Both the FAA and California law provide for a stay of proceedings pending arbitration. 9 U.S.C. § 3; C.C.P. § 1281.4.

This action is thus stayed pending the outcome of arbitration.

<u>Evidentiary Objections</u>

Plaintiff's objections do not comply with the CRC, Rule 3.1354 ("[e]ach written objection must
be numbered consecutively") and are thus overruled.

<u>**II. Joinder of KPC Global Medical Centers, Inc. and KPC Healthcare Inc.**</u>

Defendants KPC Global Medical Centers, Inc. and KPC Healthcare, Inc.'s Joinder in defendant Orange County Global Medical Center, Inc.'s Motion to Compel Arbitration is **GRANTED**. Plaintiff Trevin Sofferman is ordered to arbitrate his individual claims. The case is otherwise **STAYED** pending completion of the arbitration.

An ADR Review Hearing is scheduled for March 17, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete.

Procedural Issues

It is common practice for attorneys to join in another party's motion by simply filing a pleading captioned "joinder in motion of…", stating that the joining party adopts the arguments and authorities contained in the joined motion. *Barak v. Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 661. Joinder is appropriate where the joinder seeks affirmative relief on behalf of the joining party and joins in the arguments made by the motion being joined. *Id.*

Here, the joinder is appropriately in the form of a motion (ROA 103) and a memorandum that requests relief (ROA 77).

Merits

Plaintiff argues that joining defendants are precluded from enforcing the agreement because the arbitration agreement is

		unenforceable and moving parties may not enforce it as non-signatories and/or unnamed third parties. ROA 124. "Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it." *Molecular Analytical Systems v. Ciphergen Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 706. However, there are exceptions to this general rule, which include: "(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary." *Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 859. First, for the reasons explained in the court's ruling on Orange County Global Medical Center, Inc.'s ("OCGMC") motion to compel arbitration, which ruling is fully and expressly incorporated herein, the Dispute Resolution Agreement (the "Agreement") is fully enforceable upon its terms. ROA 93 Ex. 1. The Agreement applies to "all disputes that might arise out of or be related in any way to [ ] employment by the Company." ROA 93 Ex. 1 ¶ 1. The Company is defined as "Orange County Global Medical Center, Inc." *Id.* The claims covered by the Agreement include those against the Company's "parent, subsidiary, affiliated or client entities as well as against owners, directors, officers, managers, employees, agents, contractors, attorneys, benefit plan administrators, and insurers of the Company or of its parent, subsidiary, affiliated or client entities…[and] any person or entity [ ] allege[d] to be a joint employer with the Company." *Id.* ¶ 3. The Agreement further provides for a class and PAGA waiver. Employees "waive any substantive or procedural rights that [they] may have to bring or participate in an action brought on a class or collective basis. If under applicable law a representative claim under the California Private Attorneys General Act ('PAGA') is found to be unwaivable and such an action is pursued in court, I and the Company agree that any such PAGA claim will be severed and stayed pending resolution of claims that are arbitrable." *Id.* ¶ 4. Second, as reflected above, the Agreement expressly provides it applies to employment related disputes between the employee and, among others, OCGMC's parent, subsidiary, or affiliated entities. ROA 93 Ex. 1 ¶ 3. As explained by Candace Burchell, Human Resources Manager for OCGMC and another

		subsidiary hospital, (1) defendant KPC Healthcare, Inc. is the parent company of OCGMC and (2) defendant KPC Global Medical Centers, Inc. ("KPCGMC") is an affiliated entity of OCGMC. ROA 93 ¶¶ 2-3. Accordingly, pursuant to the express terms of the Agreement, it may be enforced by defendants KPC Healthcare, Inc. and KPCGMC (collectively, "KPC Defendants") in this PAGA-only lawsuit asserting California Labor Code violations plaintiff has alleged to have suffered during his employment. ROA 2. Finding the Agreement's express terms permit enforcement by non-signatory KPC Defendants , the court need not address defendants' other theories of enforcement. However, even if the terms of the Agreement did not include entities such as KPC Defendants, because plaintiff alleges defendants were joint employers (ROA 2 ¶¶ 12, 27), does not differentiate among defendants, and alleges a single employment-related claim and joint liability against all defendants, equitable estoppel permits enforcement by non-signatory KPC Defendants. *Garcia v. Pexco, LLC* (2017) 11 Cal. App. 5th 782, 786 (doctrine applies where the claims are "based on the same facts and are inherently inseparable"). Plaintiff's reliance on both *Mohamed v. Uber Technologies, Inc.* (2016) 848 F.3d 1201 and *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446 is misplaced as neither case involved an arbitration agreement, as here, that expressly applied to claims against parent, subsidiary, or affiliated entities. Additionally, *Barsegian* is further distinguishable as it involved an action brought against a vendor, an attorney, and a law firm alleging malpractice claims against the law firm and different claims against the other defendants arising out of a breach of a lease and alleged fraud. *Barsegian*, 215 Cal.App.4th at 449. Furthermore, *Barsegian* was readily distinguished in *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, *review denied* (Aug. 23, 2017). In distinguishing *Barsegian*, the *Garcia* court noted that, as here, Garcia's complaint alleged violations against the defendants as joint employers, referred to employers collectively as "defendants" without distinction, and alleged identical claims and conduct regarding unlawful and improper acts. *Id.* at 788. As the court in *Gonzalez v. Nowhere Beverly Hills LLC* (2024) 107 Cal.App.5th 111 held in a similar situation wherein plaintiff sued several related entities though employed by only one, "it would be unfair for [plaintiff] to group the…entities…for purposes of wage and hour liability as joint employers while at

		the same time denying the joint relationship in order to avoid arbitration." *Id.* at 124. Accordingly, for the reasons above and the court's ruling on OCGMC's motion to compel arbitration, which is fully and expressly incorporated herein, the joinder is granted. **<u>III. Joinder of Derek Drake and Peter Baronoff</u>** Defendants Derek Drake and Peter Baronoff's Joinder in defendant Orange County Global Medical Center, Inc.'s Motion to Compel Arbitration is **GRANTED**. Plaintiff Trevin Sofferman is ordered to arbitrate his individual claims. The case is otherwise **STAYED** pending completion of the arbitration. An ADR Review Hearing is scheduled for March 17, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete. **Procedural Issues** It is common practice for attorneys to join in another party's motion by simply filing a pleading captioned "joinder in motion of…", stating that the joining party adopts the arguments and authorities contained in the joined motion. *Barak v. Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 661. Joinder is appropriate where the joinder seeks affirmative relief on behalf of the joining party and joins in the arguments made by the motion being joined. *Id.* Here, the joinder is appropriately in the form of a motion (ROA 99) and a memorandum that requests relief (ROA 79). **Merits** Plaintiff argues that joining defendants are precluded from enforcing the agreement because the arbitration agreement is unenforceable and moving parties may not enforce it as non-signatories and/or unnamed third parties. ROA 118. "Generally speaking, one must be a party to an arbitration agreement to be bound by it or invoke it." *Molecular Analytical Systems v. Ciphergen Biosystems, Inc.* (2010) 186 Cal.App.4th 696, 706. However, there are exceptions to this general rule, which include: "(a) incorporation by reference;

		(b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary." *Cohen v. TNP 2008 Participating Notes Program, LLC* (2019) 31 Cal.App.5th 840, 859. First, for the reasons explained in the court's ruling on Orange County Global Medical Center, Inc.'s ("OCGMC") motion to compel arbitration, which ruling is fully and expressly incorporated herein, the Dispute Resolution Agreement (the "Agreement") is fully enforceable upon its terms. ROA 93 Ex. 1. The Agreement applies to "all disputes that might arise out of or be related in any way to [ ] employment by the Company." ROA 93 Ex. 1 ¶ 1. The Company is defined as "Orange County Global Medical Center, Inc." *Id.* The claims covered by the Agreement include those against the Company's "parent, subsidiary, affiliated or client entities as well as against owners, directors, officers, managers, employees, agents, contractors, attorneys, benefit plan administrators, and insurers of the Company or of its parent, subsidiary, affiliated or client entities…[and] any person or entity [ ] allege[d] to be a joint employer with the Company." *Id.* ¶ 3. The Agreement further provides for a class and PAGA waiver. Employees "waive any substantive or procedural rights that [they] may have to bring or participate in an action brought on a class or collective basis. If under applicable law a representative claim under the California Private Attorneys General Act ('PAGA') is found to be unwaivable and such an action is pursued in court, I and the Company agree that any such PAGA claim will be severed and stayed pending resolution of claims that are arbitrable." *Id.* ¶ 4. Second, as reflected above, the Agreement expressly provides it applies to employment related disputes between the employee and, among others, the officers of OCGMC as well as the officers of OCGMC's parent entity. ROA 93 Ex. 1 ¶ 3. As verified by Arlene Nielsen, OCGMC's Human Resources Manager, (1) defendant KPC Healthcare, Inc. is the parent company of OCGMC; (2) defendant Peter Baronoff is KPC Healthcare, Inc.'s current Chief Executive Officer; and (3) defendant Derek Drake served as OCGMC's Chief Operating Officer and, at the time of his departure in June 2025, Chief Executive Officer of OCGMC. ROA 130 ¶¶ 11-12. Accordingly, pursuant to the express terms of the Agreement, it may be enforced by defendants Peter Baronoff and Derek

		Drake in this PAGA-only lawsuit asserting California Labor Code violations plaintiff has alleged to have suffered during his employment. ROA 2. Finding the Agreement's express terms permit enforcement by non-signatory defendants Derek Drake and Peter Baronoff, the court need not address defendants' other theories of enforcement. However, even if the terms of the Agreement did not include officers such as Derek Drake and Peter Baronoff, because plaintiff alleges defendants were joint employers (ROA 2 ¶¶ 12, 27), does not differentiate among defendants, and alleges a single employment-related claim and joint liability against all defendants, equitable estoppel permits enforcement by non-signatory defendants Peter Baronoff and Derek Drake. *Garcia v. Pexco, LLC* (2017) 11 Cal. App. 5th 782, 786 (doctrine applies where the claims are "based on the same facts and are inherently inseparable"). Plaintiff's reliance on both *Mohamed v. Uber Technologies, Inc.* (2016) 848 F.3d 1201 and *Barsegian v. Kessler & Kessler* (2013) 215 Cal.App.4th 446 is misplaced as neither case involved an arbitration agreement, as here, that expressly applied to claims against officers, directors, managers, employees, or agents. Additionally, *Barsegian* is further distinguishable as it involved an action brought against a vendor, an attorney, and a law firm alleging malpractice claims against the law firm and different claims against the other defendants arising out of a breach of a lease and alleged fraud. *Barsegian*, 215 Cal.App.4th at 449. Furthermore, *Barsegian* was readily distinguished in *Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, *review denied* (Aug. 23, 2017). In distinguishing *Barsegian*, the *Garcia* court noted that, as here, Garcia's complaint alleged violations against the defendants as joint employers, referred to employers collectively as "defendants" without distinction, and alleged identical claims and conduct regarding unlawful and improper acts. *Id.* at 788. As the court in *Gonzalez v. Nowhere Beverly Hills LLC* (2024) 107 Cal.App.5th 111 held in a similar situation wherein plaintiff sued several related entities though employed by only one, "it would be unfair for [plaintiff] to group the…entities…for purposes of wage and hour liability as joint employers while at the same time denying the joint relationship in order to avoid arbitration." *Id.* at 124.

		Accordingly, for the reasons above and the court's ruling on OCGMC's motion to compel arbitration, which is fully and expressly incorporated herein, the joinder is granted.
12	30-2025-01536371 Barnes vs. Hoskins Equipment LLC	Defendant Hoskins Equipment LLC's motion to compel arbitration is **GRANTED**. Plaintiff Christopher M. Barnes Sr. is ordered to arbitrate his individual claims. The case is otherwise **STAYED** pending completion of the individual arbitration. An ADR Review Hearing is scheduled for February 25, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16 days before the hearing and shall request a continuance if arbitration is not yet complete. **Procedural Dispute** Defendant filed its original motion on 03-06-2026. ROA 19. On 06-12-2026, defendant filed a "notice of errata" in which it is explained defendant inadvertently neglected to redact some of plaintiff's medical information from the original filing. ROA 31. Defendant states the court advised counsel to obtain a stipulation from plaintiff to replace the original filing rather than withdraw it and file a new motion. ROA 31, 50. Plaintiff refused to stipulate. ROA 50. On 06-15-2026, the court entered an order replacing the originally filed motion. ROA 41. Plaintiff argues this process deprived him of proper notice and prejudiced his ability to oppose the motion. ROA 39. However, plaintiff fails to explain a basis for this claim. ROA 33, 39. Furthermore, the court observes the actual redactions to plaintiff's employment documents are not relevant to any issue in dispute and, even if they were, plaintiff had timely possession of the unredacted versions. *Compare* ROA 33 at 1-2 *with* ROA 31 Exs. 1-3. Accordingly, plaintiff's complaint of insufficient notice and/or prejudice (and the related request for sanctions) lacks merit. See C.C.P. §§ 128.5, 128.7 (sanctions request requires noticed motion). **Formation of Agreement** The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. *Little v. Pullman* (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of

		proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. *Id.*; *Perry v. Thomas* (1987) 482 U.S. 483, 492 n.9 (State law applicable to contracts generally governs whether a valid arbitration agreement exists.) Here, while he does not specifically recall doing so, plaintiff (ROA 35) does not dispute he hand-signed the "Binding Arbitration Provision" (the "Agreement") on 02-25-2022. ROA 31 Ex. 3. Accordingly, the court finds the parties formed an agreement to arbitrate. **Applicability of the Federal Arbitration Act** The Agreement states it is governed by the FAA. ROA 31 Ex. 3 (all disputes must be "submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act, in conformity with the procedures of the California Arbitration Act…"). Defendant provides additional evidence that the FAA applies because its business involves interstate commerce. Leidholdt Decl. ¶ 8. Accordingly, the court finds the FAA applies, and plaintiff does not argue otherwise. **Relevant Terms and Whether the Agreement Covers the Dispute** The Agreement applies to "any claim, dispute, and/or controversy…either [employee] or the Company…arising from, related to, or having any relationship or connection whatsoever with my seeking employment with, employment by, or other association with the Company…" ROA 31 Ex. 3. There is no dispute the Agreement covers the claims asserted by plaintiff. **Unconscionability** In *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, "'generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening" the FAA' or California law." *Id.* at 125; *accord AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.

To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243; *see also OTO, L.L.C., supra*, 8 Cal.5th at 129-30. "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." *Armendariz, supra*, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 402.

<u>Procedural Unconscionability</u>

First, plaintiff contends the Agreement was adhesive and/or a condition of employment. Plaintiff states he understood he was "required" to complete the onboarding paperwork in order to begin work. ROA 35. He does not, however, explain how he came to that understanding and defendant offers conflicting evidence. Wendi Leidholdt, the Human Resources representative of defendant states "Hoskins does not communicate to employees that signing the Arbitration Agreement is mandatory. In my experience, employees choose to sign the Arbitration Agreement." Leidholdt Decl. ¶ 7. Additionally, as defendant points out, the Agreement states it is voluntary in all caps directly above the signature line. ROA 31 Ex. 3 ("I UNDERSTAND BY VOLUNTARILY AGREEING TO THIIS BINDING ARBITRATION PROVISION, BOTH I AND THE COMPANY GIVE UP OUR RIGHTS TO TRIAL BY JURY OF ANY CLAIM I OR THE COMPANY MAY HAVE AGAINST EACH OTHER."). Accordingly, the evidence does not support a finding the Agreement is a condition of employment. However, even if the court were to assume the Agreement is adhesive in nature, such evidence demonstrates only a negligible amount of procedural unconscionability. *See Samaniego v. Empire Today, LLC* (2012) 205 Cal.App.4th 1138, 1145 (procedural unconscionability presumptively low absent evidence the defendant actively interfered with plaintiff's ability to review and understand the arbitration clause).

		Second, plaintiff argues procedural unconscionability on the basis the Agreement fails to identify the applicable rules and failed to provide them. While that is true, the Agreement states it is governed by the procedures of the California Arbitration Act. ROA 31 Ex. 3 (all disputes must be "submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act, in conformity with the procedures of the California Arbitration Act…"). In such cases, "the absence of a specified forum or set of rules in an arbitration clause does not invalidate the agreement to arbitrate. Rather, in the absence of such provisions, 'the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator...'—including the forum and rules that will govern the arbitration—or, if the parties cannot agree, 'the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator.'" *HM DG, Inc. v. Amini* (2013) 219 Cal. App. 4th 1100, 1110 (quoting C.C.P. § 1281.6.). Accordingly, because the parties are to agree on an arbitrator without limitation as to affiliation (e.g., JAMS, AAA), it is unsurprising the Agreement fails to identify the controlling arbitration rules. Relatedly, plaintiff makes no contention that any arbitration rules that could conceivably apply are substantively unconscionable and fails to provide any authority that the mutual agreement of an arbitrator (and thus the applicable arbitration rules) is somehow unconscionable. *See Baltazar v. Forever 21, Inc*. (2016) 62 Cal.4th 1237, 1246 (failure to attach the applicable arbitration rules is relevant only where the rules which were hidden are substantively unconscionable). Third, to the extent plaintiff argues that defendant failed to explain the Agreement, it is not relevant to enforceability whether the Agreement was explained, read, or understood. *See Randas v. YMCA of Metro. Los Angeles* (1993) 17 Cal.App.4th 158, 163 ("one who accepts or signs an instrument, which on its face is a contract, is deemed to assent to all its terms, and cannot escape liability on the ground that he has not read it."). Fourth, to the extent plaintiff argues the onboarding process was oppressive based on the number of documents presented or the font size therein, the evidence does not support that conclusion. The "New Hire Documents" consist of fewer than 10 pages of standardized forms, including government required tax documents. ROA 31 Ex. 2. As to the Agreement, while the court concurs that the font is small, but no smaller

		than the font used in the other application and onboarding documents. *Id.* Exs. 1-3. Furthermore, the Agreement consists of a single paragraph on a separate page and contains no legal jargon, technical language, or other aspects likely to result in oppression. Accordingly, the evidence, at most, demonstrates a low amount of procedural unconscionability based on the presumed adhesive nature of the Agreement. <u>Substantive Unconscionability</u> Substantive unconscionability examines the fairness of a contract's terms to ensure that a contract of adhesion does not impose terms that are overly harsh, unduly oppressive, or unfairly one-sided. *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 129-30. The court focuses on terms that unreasonably favor the more powerful party, impair the integrity of the bargaining process, contravene public interest or policy, or attempt to impermissibly alter fundamental legal duties. This includes unreasonable or harsh terms or ones that undermine the non-drafting party's reasonable expectations. *Id.* at 130. First, plaintiff appears to re-argue procedural unconscionability based on the onboarding process. ROA 33 at 10. Those arguments lack merit for the reasons discussed above. Plaintiff also cites various authorities and makes several untethered statements which he fails to apply to this case. *See, e.g., id*. ("Defendant's conduct here supports the conclusion that the arbitration agreement 'appears less as a forum for neutral dispute resolution and more as a means of maximizing employer advantage.' Defendant attempts to enforce only the parts that benefit them, without taking responsibility for the entire bundle of terms they imposed."). While plaintiff purports to do so, he fails to point to any part of the Agreement that demonstrates a lack of mutuality. Second, plaintiff argues that the Agreement's failure to specify that the employer will pay the costs associated with arbitration is substantively unconscionable. This argument is unavailing. Per the California Arbitration Act, which applies here, employers such as defendant who draft and maintain arbitration agreements are responsible for paying fees and costs to an arbitrator. C.C.P. § 1281.98. Furthermore, as defendant points out, this same argument was rejected by the California Supreme Court in the case upon which plaintiff

		relies. *Armendariz v. Found. Health Psychcare Servs., Inc.* (2000) 24 Cal. 4th 83, 113 ("we interpret the arbitration agreement in the present case as providing . . . that the employer must bear the arbitration forum costs. The absence of specific provisions on arbitration costs would therefore not be grounds for denying the enforcement of an arbitration agreement"). Accordingly, because there is no apparent substantive unconscionability, the Agreement is enforceable without regard to the negligible amount of procedural unconscionability. **Class Claims** "[A] party may not be compelled under the FAA to submit to class arbitration unless there is a contractual basis for concluding that the party agreed to do so." *Stolt–Nielsen S.A. v. AnimalFeeds International Corp.* (2010) 559 U.S. 662, 684. An implicit agreement to authorize class-action arbitration is not a term that may be inferred "solely from the fact of the parties' agreement to arbitrate. This is so because class-action arbitration changes the nature of arbitration to such a degree that it cannot be presumed the parties consented to it by simply agreeing to submit their disputes to an arbitrator." *Id.* at 1775. Here, the Agreement is silent as to class or collective actions. Accordingly, under the FAA, those claims cannot be arbitrated. *See Kinecta Alternative Financial Solutions, Inc. v. Superior Court* (2012) 205 Cal.App.4th 506, 518-519 (party cannot be compelled to class action arbitration unless they agreed to authorize class action arbitration). However, just because the class claims cannot be ordered to arbitration, it does not follow that those claims should be dismissed in the absence of contractual language providing for an express waiver of such claims. Accordingly, the court will not, at this time, dismiss plaintiff's class claims. Those claims will be stayed pending resolution of the individual arbitration. **PAGA Claims** This case does not include any PAGA claims. Plaintiff's claims in the related PAGA case are not at issue in this motion. **Plaintiff's Evidentiary Objections**

		Plaintiff's objections are overruled. The objections do not comply with the CRC, Rule 3.1354 ("[e]ach written objection must be numbered consecutively"). ROA 37. **Notice** Moving party is ordered to give notice of this ruling.